

**Discuss following cases in accordance with ethical values:**

### **Copyright issue-1**

A US-based photographer of Nepali origin has sent a copyright notice to the Indian Prime Minister's Office for allegedly using his photo without permission of an official Facebook page.

The case pertains to a photograph of glowing candles in an S-shaped pattern, which had appeared on Narendra Modi's Facebook page in October last year with a message on the occasion of Dhanteras.

Photographer Bimal Nepal claims he had clicked the photo and posted it on photo-sharing site Flickr in 2012 before it appeared on Modi's Facebook page without his permission or giving him credit.

"We work hard at our craft, and others, no matter how prominent and powerful, should not be permitted to misappropriate the fruits of our labour and skill," he said.

The issue created a flutter on social media last year and Nepal had asked Modi to give him credit and compensation. He said he had decided to pursue the issue as there was no response from New Delhi.

When the matter first came to light, the Prime Minister's Office (PMO) had said the photo was publicly available on several websites and there was no need to take permission from the photographer. Sources in the PMO had said the photo was sent by a creative agency, which had clarified it was available on prominent and legitimate websites that offered the option of downloading it for free.

The sources further said the photo was used to extend wishes to Modi's online followers and not to make any profit.

On Friday, the US law firm of Fish and Richardson, which is pursuing Nepal's case pro-bono, issued a statement confirming that it had sent a letter to the PMO.

The firm is "offering to license the Prime Minister's use of the photograph in exchange for an acknowledgement crediting him (Nepal) as the photographer and a nominal license fee".

### **Copyright issue-2**

Kriti, a short film by Shirish Kunder, has been taken down by YouTube amidst a copyright controversy initiated by a filmmaker from Nepal, Aneel Neupane. The short film, Kriti, was uploaded on YouTube on June 22, 2016. The short film had bagged over two million views within 2 days. However, on June 24, Kriti found itself in controversy as Neupane updated a facebook status, openly accusing Kriti to be a copy of his short film, Bob. Neupane claimed that he had circulated the film privately among a close group of friends and had finally uploaded it on YouTube on May 12, 2016.

Responding to this claim of plagiarism, YouTube has taken down the short film, Kriti, on June 29. After the copyright controversy and the resultant take down of 'Kriti' from YouTube, 'Bob' was also taken down from YouTube on June 30. It is also being alleged that Kriti's poster has been copied from a Japanese film, Ghost Theater, directed by Hideo Nakata, which was a remake of a movie, Don't Look Up. Both the posters exhibit a similar expression of idea, in the form of a see-through hand placed over the eyes of a girl.

Meanwhile, a legal notice has been sent by Shirish Kunder and he has sought an 'unconditional apology' from Aneel Neupane. The producers of Kriti, Muvizz.com, have also initiated legal proceedings against Neupane and intend to file a defamation suit against him. In their official statement, Muvizz.com claim that they possess extensive proof to substantiate that Kriti was shot before the release of Bob on YouTube. The producers of Kriti have also said that they share no connection with the 'close group of friends' of the Nepali filmmaker, amongst whom the film was privately circulated.

### **Personal data privacy-1**

A new scheme that would allow Nepal police to intercept telephone calls in national security cases has been put forward to cabinet for approval, police said on Thursday, a move that has alarmed rights groups.

The move aims to give police the authority to wiretap communication Criminal Procedure Code and is the latest security measure.

"A cabinet meeting agreed in principle to allow tapping of telephone calls for criminal cases," police spokesman, told Reuters, adding that there were still several steps until the law is approved.

Police seeking to intercept calls will have to ask court permission, said a senior police officer involved in amending the law, who declined to be named because he was not authorized to speak to media.

### **Personal data privacy-2**

Getting your Facebook account hacked is one of the most stressful situation. Think of the things that hacker can do to your account? What if the hacker will abuse and delete all your personal information or your Facebook account itself? It's a great nightmare. Right?

To prevent this scenario from happening, a regular password update or changes will be of great help. However, if your Facebook is already hacked, the first thing you should do is – don't Panic! Then take immediate action.

### **Industrialization and environmental degradation-1**

If a report is something to go by, Bhaktapur is more polluted than Kathmandu in terms of ambient air quality.

Bhaktapur is home to over 120 brick kilns registered and operating under Bhaktapur Cottage and Small industries. A recent report of Leaders Nepal shows that air in Bhaktapur has become much polluted due to the brick kilns.

An e-sampler machine has been installed at Putalisadak, Kathmandu, Siddhi Memorial Hospital, Bhaktapur, and Panchkhal, Sindhupalchowk to measure the levels of air pollution in various cities.

In the month of Baisakh, the average pollution level in Bhaktapur was recorded to be 83 microgram per cubic meter, and in Kathmandu the pollution level was recorded to be 63 microgram per cubic meter.

The National Ambient Air Quality Standard has set a standard of 40 microgram per cubic meter to protect public health. However, frequent rainfalls in this season has caused pollution levels to decline.

Leaders Nepal, under the guidance of the health programme, has been consistently recording 2.5 micrograms per cubic meter of fine dust particles in the air for the past 10 years. The study said pollution levels were recorded to be drastically lower during the blockade when brick kilns were shut (up to 2.5 to 52 micrograms per cubic meter) as opposed to when the factories were running (153 micrograms per cubic meter).

Dhiraj Pokharel, general secretary of Leaders Nepal, blames the polluted air flowing from Kathmandu to Bhaktapur for the high levels of pollution there. Air flows from Balaju through Pokharel added, "Another reason for pollution is low chimney hoods in factories today. The earthquakes last year destroyed all high chimney hoods, and only small ones remain functional."

The report also said that the amount of pollution is high in the morning, rising from 6:00 am, and falling from 12:00 pm onwards. This information is worrisome as most children go to school and are out in the open at this time.

### **Industrialization and environmental degradation-2**

The deadliest landslide in Nepal in a decade is raising fresh questions about the country's ability to use the rivers of the Himalayan range to electrify South Asia.

The disaster on August 2 buried 156 people, covered the main highway to China in mud and debris 20 meters deep, and blocked the Sun Koshi River roughly 80 kilometers east of Kathmandu. Water quickly pooled behind the rubble forming a lake that submerged a small hydropower station three kilometers upstream. The lake poses a flood risk for at least 400,000 people in two countries.

The landslide also damaged a hydropower station downstream and cut electrical transmission lines along the valley. In all, nearly 10 percent of the nation's hydropower capacity, some 67 megawatts, was severed by the landslide, leading to power cuts in the capital and elsewhere in the country of 27 million people.

It is the second time in a year that a mammoth disaster ripped the region's high mountain passes, causing deaths, vast damage to roads and other infrastructure, and ravaging hydropower installations. In June 2013 wicked flooding in Uttarakhand, an Indian state that lies across Nepal's western border, killed at least 6,000 people and seriously damaged at least 10 big hydropower projects in operation and under construction. Another 19 small hydropower projects that generate under 25 megawatts were destroyed.

### **Public transportation**

Travelling in public vehicles may not be as enjoyable as commuting in your own personal motors. But they should at least be at ease to take a trip. It is not certain that everyone can go in one's own personal vehicle nor each and every person can afford to hire a taxi or similar means of public transportation for everyday purpose, and so there comes the only ultimate option, which is using the public vehicles.

Everyone in the Kathmandu valley is undoubtedly familiar with the type of public vehicle. They are just so overcrowded, especially at office hours. The rush of the students and the office doers all at the same time leads to overcrowd in the public vehicle. It is not that everybody wants to travel uncomfortably. But it has been a compulsion.

Public vehicles in the nation's capital city are so crowded at the hours when they are needed most that the passengers even feel suffocated due to the lack of enough air to breathe in and space to stand up. No matter how much loaded the public vehicle is, the passengers won't care about it but to reach their destination. This fact carries a reality — if we wait for another vehicle in the hope of getting a less crowded one, it would be almost impossible, especially at the office time. Waiting for another vehicle also results in reaching late in your destination. Thus, it is obvious that travelling in crowded vehicles is a daily hassle or a part of our daily routine.

Moreover, while in the overcrowded vehicle there are the high chances of being subject to sexual harassment, too. Everyone is in a haste to reach the destination and that's how we become a part of the hustling bustling group of passengers which we often repel. Getting squeezed, pushed or pulled, stepped on is in no way a tolerating situation. But such annoying situation gets even worse for the woman passengers when the male passengers start to behave with sadistic motive and ill-intention in the name of overcrowded vehicle. If you are a woman and in the crowded vehicle, you will get more pushes and touches than the fellow male travelers. Thus congested public vehicles become scene of sexual harassment and many women undergo this crime in their everyday life because of the excuse- the vehicle is so crowded. This problem has become really burning these days although reserved seats for women have minimized the problems. Similarly, pickpockets easily get to do their evils.

### **Open cases -1**

B. Wright, a principal in ABC Engineering, an environmental engineering firm, submits qualifications and a proposal to a local municipality to be considered as the consultant for the research and analysis of a former dump site which is being considered for reclamation as a wetland. The dump has been closed for many years after being used for several decades for commercial waste disposal, possibly without any regulation or control. In a meeting with B. Wright, the municipality indicates the possibility that there could be hazardous and toxic wastes encountered in the dump. Upon being awarded the contract, B. Wright is informed by the city that, as part of the contract, a confidentiality clause must be signed which precludes B. Wright from disclosing any results or information concerning the project without the city's written permission. He signs the contract and the clause.

Preliminary research by B. Wright confirms that the dump site is not closed according to the hazardous and solid waste regulations of the state. Tests of the surface soils on the site are inconclusive but reveal a possibility that very high contaminant levels of hazardous and toxic waste could, over time, become exposed at the surface, due to erosion of the cover, and even washed into a river that flows immediately adjacent to the site. The city is considering plans to build a children's park, recreation and picnic area, bike/jogging trail, and parkway near the reclaimed areas, and the river is used for drinking water intake for cities on the other side of the river and downstream. Upon receiving the initial data, the city terminates the contract, saying that the development will be moved to another site, citing the political ramifications of revealing the findings and the economics of having to clean up the property as its reasons for not continuing. B. Wright responds that the city has a responsibility to the public to proceed to remediation, even if the development is moved elsewhere, but the city refuses and reminds B. Wright of its confidentiality clause and the legal consequences of going public with the confidential information

### **Open cases 2**

Engineer A, a professional engineer with expertise in civil engineering, served as a Civilian Building and Grounds Division Chief at a U.S. Army installation. An Army official requests that Engineer A certify that certain arms storage rooms and arms storage racks on the military installation are in accordance with certain specific, lengthy, and detailed Army physical security, arms, ammunition, and explosive regulations, which are cross-referenced with other Army regulations. Engineer A has no significant training or knowledge in these areas. There are comprehensive training programs available for this type of work, but training funds are not available.

### **Open cases 3**

I. M. Goode, a renowned structural engineer, is hired for a nominal sum by a large city newspaper to visit the site of a state bridge construction project, which has had a troubled history of construction delays, cost increases, and litigation primarily as a result of several well-publicized, on-site accidents. Recently the state highway department has announced the date for the opening of the bridge. State engineers have been proceeding with repairs based upon a specific schedule. I. M. Goode visits the bridge and performs a one-day visual observation. Her report identifies, in very general terms, potential problems and proposes additional testing and other possible engineering solutions.

Thereafter, in a series of feature articles based upon information gleaned from I. M. Goode's report, the newspaper alleges that the bridge has major safety problems that jeopardize its successful completion date. Allegations of misconduct and incompetence are made against the project engineers and the contractors as well as the state highway department. During an investigation by the state, I. M. Goode states that her report was intended merely to identify what she viewed were potential problems with the safety of the bridge and was not intended to be conclusive as to the safety of the bridge.

### **Open cases 4**

Bill LeVard, P.E., performs a traffic study for HighYield Enterprises as part of the client's permit application for traffic flow for the development of a store. LeVard invoices HighYield for a complete traffic study.

Later, HighYield learns that LeVard created part of the traffic study earlier for a developer, ProfitTech Industries. High Yield also learns that LeVard invoiced ProfitTech for the complete traffic study. The second study on a new project for HighYield used some of the same raw data that was in the report prepared for ProfitTech. The final conclusion of the engineering study was essentially the same in both studies.

### **Open cases 5**

You are a sixth-year graduate student at a large university in the final months of your dissertation research on novel photonic materials. You are worried about your next appointment, and have applied for several postdoctoral positions in this field plus a few tenure-track assistant professorships at universities where you would like to work. To your surprise and pleasure, you are invited for an interview for a tenure-track appointment at your undergraduate alma mater, a prestigious research institution in a city where you already have connections and would love to live.

In the question-and-answer period following your seminar on your research, the department chair asks for detailed information about the novel material-preparation technique developed in your graduate research, and used extensively in your experiments. Your group is working on a patent application and its members have agreed not to provide details until a paper currently being prepared is submitted for publication. Your thesis advisor will be giving the first major presentation on the technique at a major international conference in a couple months.

You answer that you and your colleagues are in the process of writing it up for publication and a patent application, and you would be glad to send them an early preprint when it is available. The question and answer period continues and concludes uneventfully and pleasantly.

After the seminar, in your private interview with the Chair, he pushes harder for this information, remarking that the Department seeks team players, willing to share information with department colleagues, and referring to your undergraduate roots and the need to prove you are one of them to be a viable candidate for the position. What should you do?

### **Open cases 6**

A student finishes a Ph.D. working on a problem that has aspects that are directly patentable and solve a major problem in the disk drive industry. His new job could be with Hitachi or Seagate, or some similar firm. He arrives at the new job and discovers that the work done as a student, which is in the patent process, will solve the problem at his new company. If he reveals what he knows to his new employer he will be an immediate hero, but will compromise the patent process at his original institution. This step could have important financial implications for the original institution in the form of royalties.

### **Open cases 7**

You find a novel solution to an important problem posed by your advisor; however, your advisor sees this as an opportunity for him to get published, downplays the significance of the results, collates a paper and submits it before you are any the wiser (the paper acknowledges a discussion with you, but does not include you as an author). You are absolutely clear that this idea was yours, and feel suitably put out. You approach your advisor and make a complaint, but he empathizes with you and tells you to be a bit quicker with the write-up next time. He tells you, "That's just the way of the world."

You decide not to leave it there, and approach the head of the department (going up one link in the management chain). You make your complaint to him, and he asks you for evidence, but you can't provide any because you didn't keep a dated notebook: all of your notes are in several ring binders, some at home and some in your desk at work. You start feeling a bit silly, and the head advises you to drop the matter.

### **Open cases 8**

The currency of physics is truth. Anyone who does not understand this should not be allowed to continue in physics. It is unfortunately true that many students do not understand that material from the web is not free but must be acknowledged with the same citation structure that is used for printed material. While ignorance of the law does not excuse breaking it, in many cases there is no intent to do wrong. It is also possible that this student knows he is cheating but is claiming ignorance, hoping to escape the consequences.

There are a number of options. One would be to ignore the problem. Alternatively, you could contact his instructor and discuss the problem with her. You could alert your chair that there is a "cheating" graduate student in the department. You could also tell no one else, but treat the occurrence as a "teaching moment," working with the student to help him understand the seriousness of his action and how to correct it.

An outside observer might ask whether the department discusses plagiarism in its orientation program for its new graduate students. Another question might be whether there is a way to monitor this student's future behavior without irreparably damaging his future. This is a situation in which the importance of formal ethics instruction comes to the fore.

### **Open cases 9**

A graduate student has been working in a lab for a year on what she hopes will be her Ph.D. dissertation research. She has been troubled for the last several months by the possibility that her advisor may be manipulating data used in his publications. This past week, she has just discovered what she believes to be incontrovertible evidence that some of his published data had in fact been fabricated.